

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Team # 4	CCRB Case #: 201411370	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/04/2014 6:15 PM	Location of Incident: East 115th Street and 3rd Avenue	18 Mo. SOL 5/4/2016	Precinct: 25		
Date/Time CV Reported Fri, 11/07/2014 1:20 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 11/07/2014 1:20 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Aman Rana	14952	956191	PSA 5
2. An officer			
3. POM Kishar Surajbali	12912	956239	PSA 5
4. POM Andrew Mancusi	10763	956059	PSA 5
5. POM Moses Jang	14924	956003	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . POM Aman Rana	Abuse: PO Aman Rana stopped § 87(2)(b)	A . Exonerated
B . POM Aman Rana	Discourtesy: PO Aman Rana spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . POM Aman Rana	Abuse: PO Aman Rana threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Moses Jang	Discourtesy: PO Moses Jang spoke rudely to § 87(2)(b)	D . Unsubstantiated
E . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	E . Officer(s) Unidentified
F . An officer	Off. Language: An officer made offensive remarks to § 87(2)(b) based upon sexual orientation.	F . Officer(s) Unidentified
G . POM Moses Jang	Abuse: PO Moses Jang threatened to arrest § 87(2)(b)	G . Unsubstantiated
H . POM Aman Rana	Abuse: PO Aman Rana refused to provide his name to § 87(2)(b)	H . Unsubstantiated
I . POM Moses Jang	Abuse: PO Moses Jang refused to provide his name to § 87(2)(b)	I . Unsubstantiated
J . POM Andrew Mancusi	Abuse: PO Andrew Mancusi refused to provide his name to § 87(2)(b)	J . Unsubstantiated
K . POM Kishar Surajbali	Abuse: PO Kishar Surajbali refused to provide his name to § 87(2)(b)	K . Unsubstantiated
L . POM Aman Rana	Discourtesy: PO Aman Rana acted rudely toward § 87(2)(b)	L . Unsubstantiated
M . POM Aman Rana	Abuse: PO Aman Rana issued a summons to § 87(2)(b)	M . Substantiated

Case Summary

On November 4, 2014, in the vicinity of East 115th Street and 3rd Avenue in Manhattan, § 87(2)(b) was stopped by PO Aman Rana, with his partner PO Moses Jang, on the suspicion of public urination (**Allegation A**). After he was stopped, § 87(2)(b) alleged that PO Rana asked him if he was “pissing” and “why the fuck” he would walk away from it. § 87(2)(b) alleged that PO Rana used discourteous language throughout the encounter, including “Shut up. I’ll whip your ass,” and threatening to “smack the shit” out of § 87(2)(b). PO Jang referred to § 87(2)(b) as an “asshole” during the encounter (**Allegations B, C, and D**). Two additional officers, PO Kishar Surajbali and PO Andrew Mancusi, arrived during the encounter and § 87(2)(b) alleged that one of them told the officers to step aside so that he could “get a good kick on his § 87(2)(b) s] ass” if needed and referred to § 87(2)(b) as a “faggot” (**Allegations E and F**). § 87(2)(b) alleged that PO Jang said that he would “lock him up and throw the key away” (**Allegation G**). § 87(2)(b) told the officers that he was going to file a complaint and he alleged that PO Rana replied and told him that he didn’t “give a fuck,” § 87(2)(b) would lose, and that he could “smack” § 87(2)(b) and that the officers could “whip his ass, do anything they wanted, and get away with it.” § 87(2)(b) alleged he asked all the officers present to write down their names for him. PO Rana responded, “Go fuck yourself,” and PO Jang told him “I don’t give a shit.” No officer provided their name to § 87(2)(b) (**Allegations H, I, J, and K**). § 87(2)(b) had given PO Rana his ID and alleged that PO Rana pretended to hand him his ID several times and then would pull it away from him when § 87(2)(b) reached for it (**Allegation L**). PO Rana eventually handed § 87(2)(b) his ID and gave him a summons for public urination in the park (**Allegation M**).

§ 87(2)(g)

Mediation, Civil, and Criminal History

§ 87(2)(b) was offered the option to mediate, but declined § 87(2)(b). As of March 6, 2014, a Notice of Claim had not been filed with the City of New York with regard to the incident (encl. L2). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the fifth CCRB complaint filed by § 87(2)(b). None of the allegations from § 87(2)(b) s previous complaints have been substantiated (encl. B1).
- This is the first complaint filed against PO Rana during his one year tenure (encl. A1).
- This is the first complaint filed against PO Jang during his one year tenure (encl. A2).
- This is the first complaint filed against PO Mancusi during his one year tenure (encl. A3).
- This is the first complaint filed against PO Surajbali during his one year tenure (encl. A4).

Findings and Recommendations

Explanation of Subject Officer Identification

All four officers acknowledged interacting with § 87(2)(b). Although § 87(2)(b) described a fifth, female officer arriving during the incident, all officers’ testimonies and documentation indicated that only four officers were present during the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) described two additional male officers, identified through investigation as PO Mancusi and PO Surajbali, as arriving halfway through the incident. § 87(2)(b) alleged that one of the additional officers told another officer to step aside so that he could “get a good kick on his ass” and referred to § 87(2)(b) as a “faggot.” § 87(2)(b) described the additional officers as a white or Hispanic male in his 30s, standing 5’5”-5’6” tall, weighing 200 pounds, with short black hair and a white male, approximately 33-35-years-old, standing 5’5”-5’8” tall, weighing 180-190 pounds, with black hair (encl. D1-D3). PO Mancusi is a § 87(2)(b)-old white male, § 87(2)(b), and has brown hair. PO Surajbali is a § 87(2)(b)-old black male, § 87(2)(b), and has black hair. PO Mancusi and PO Surajbali denied saying either of the statements alleged by § 87(2)(b) § 87(2)(g)

Recommendations

Allegation A – Abuse of Authority: PO Aman Rana stopped § 87(2)(b)

It is undisputed that PO Rana stopped § 87(2)(b) § 87(2)(b) stated that he was leaning against a wall of a public school at East 115th Street and 3rd Avenue, because he believed he was going to vomit. § 87(2)(b) described himself as facing the wall, leaning on it with one hand. He was leaning on the wall for approximately two seconds when he noticed two officers, identified as PO Rana and PO Jang, approaching him from across the street. § 87(2)(b) stated that he believed PO Rana and PO Jang intended to stop him, so he walked away, thinking they would leave him alone if he walked away and because he wanted to be in a well-lit area if he was stopped. § 87(2)(b) alleged that he walked approximately 30 feet, realized the officers intended to stop him, and stopped on his own volition (encl. D1-D3).

PO Rana stated that he observed § 87(2)(b) from across the park and his body language led PO Rana to believe that § 87(2)(b) was urinating. In a later interview, PO Rana also stated that he had intended to stop § 87(2)(b) even before witnessing the alleged urination, because § 87(2)(b) was entering a park, which closes at dusk, after dark (encl. E12). PO Rana could not articulate what about § 87(2)(b)'s body language indicated he was urinating, but during his CCRB testimony motioned that § 87(2)(b)'s hand was near his genital area and stated that § 87(2)(b) was facing a corner. PO Rana did not see § 87(2)(b)'s genitals or any urine. PO Rana stated that § 87(2)(b)'s side was to him and as soon as § 87(2)(b) saw PO Rana, he walked out of the park. PO Rana told § 87(2)(b) to stop, which he complied with. PO Jang did not observe § 87(2)(b) urinating, but was informed by PO Rana of his observation prior to approaching § 87(2)(b). PO Jang stated that PO Rana instructed § 87(2)(b) to stop, which he did. Neither PO Mancusi nor PO Surajbali were present when § 87(2)(b) was initially stopped.

According to Section 212-11 of the NYPD Patrol Guide, an officer may stop a person when he reasonably suspects that a person is committing or has committed a felony or misdemeanor (encl. AA1-AA4). Public urination is a NYC Park Rule violation under section 1-04 and constitutes a misdemeanor (encl. AA5-AA7, AA8).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Discourtesy: PO Aman Rana spoke rudely to § 87(2)(b)

Allegation C – Abuse of Authority: PO Aman Rana threatened § 87(2)(b) with use of force.

Allegation D – Discourtesy: PO Moses Jang spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Rana and PO Jang used various discourteous and offensive language towards him throughout the incident, including, but not limited to, “why the fuck,” “shut the fuck up,” “asshole,” “go fuck yourself,” and “I don’t give a shit.” § 87(2)(b) stated that he volunteered to walk with the officers to where he had been previously standing to determine if there was urine there and PO Rana told him, “Shut up. I’ll whip your ass,” and threatened to “smack the shit” out of him. Later in the incident, § 87(2)(b) alleged that PO Rana told him he could “whoop his ass and get away with it” and “whip his ass, do anything they wanted, and get away with it.”

PO Rana and PO Jang both stated in their testimony that during the incident, § 87(2)(b) said, “Rookie faggot, I should have decked you and bolted motherfucker,” and both officers ignored and did not respond to this statement. This statement was also noted on the summons that § 87(2)(b) received; he denied saying anything like this during the incident. PO Mancusi described § 87(2)(b) as visibly aggravated. He stated that § 87(2)(b) was speaking during the incident and was getting to a “disorderly manner” and speaking in an aggressive tone, but did not remember if § 87(2)(b) used any profanity. PO Surajbali described § 87(2)(b) as irate and speaking loudly. He recalled § 87(2)(b) making the statement, “This is bullshit,” but did not recall if § 87(2)(b) used any profanity besides this (encl. E1-E10, F1-F8, G4-G6, H5-H7).

PO Rana, PO Jang, PO Mancusi, and PO Surajbali denied using any profanity, making the alleged remarks, or hearing any other officer do so.. § 87(2)(g)

Therefore, it is recommended that **Allegations B, C, and D** be closed as **unsubstantiated**.

Allegation E - Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

Allegation F – Offensive Language: An officer made offensive remarks to § 87(2)(b) based upon sexual orientation.

§ 87(2)(b) alleged that an officer told the other officers to step to the side so that he could “get a good kick on his § 87(2)(b) s] ass” if needed and referred to him as a “faggot.”

PO Rana, PO Jang, PO Mancusi, and PO Surajbali all denied making these comments or any remarks similar to it during the incident. § 87(2)(g)

it is recommended that **Allegations E and F** be closed as **officer(s) unidentified**.

Allegation G – Abuse of Authority: PO Moses Jang threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that PO Jang told him he would “lock him up and throw the key away” and that he could put § 87(2)(b) in jail for three hours because that was the maximum amount of time he could be held without charges.

PO Rana and PO Jang both described § 87(2)(b) as initially refusing to provide his ID. PO Jang informed § 87(2)(b) if he did not provide his ID, he would be taken to the stationhouse, but this was the only time PO Jang referred to the stationhouse during the incident. PO Mancusi and PO Surajbali did not mention § 87(2)(b) making a statement similar to this. All of the officers denied making these statements or anything similar to § 87(2)(b) or hearing any other officer do so.

§ 87(2)(g) Therefore, it is recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation H – Abuse of Authority: PO Aman Rana refused to provide his name to § 87(2)(b)

Allegation I – Abuse of Authority: PO Moses Jang refused to provide his name to § 87(2)(b)

Allegation J – Abuse of Authority: PO Andrew Mancusi refused to provide his name to § 87(2)(b)

Allegation K – Abuse of Authority: PO Kishar Surajbali refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that while all the officers were present, he stated that he going to file a complaint and he would like all the officers' names. He had a pen and napkin and asked the officers to write down their names for him. § 87(2)(b) alleged that PO Rana and PO Jang acknowledged this request by responding, "Go fuck yourself," and "I don't give a shit" and no officer provided his name to § 87(2)(b).

PO Rana stated that upon initially stopping § 87(2)(b) he provided his name and rank to him. PO Jang said that § 87(2)(b) asked him and PO Rana for their names and shield numbers, and both officers verbally provided this information to him. PO Jang did not recall if PO Mancusi and PO Surajbali were on scene when § 87(2)(b) made this request or if § 87(2)(b) ever asked PO Mancusi or PO Surajbali for their names or shield numbers. Neither PO Mancusi nor PO Surajbali recalled § 87(2)(b) asking for any officer's name or any officer denying § 87(2)(b) this information.

§ 87(2)(g) it is recommended that **Allegation H, I, J, and K** be closed as **unsubstantiated**.

Allegation L – Discourtesy: PO Aman Rana acted rudely toward § 87(2)(b)

§ 87(2)(b) alleged that after PO Rana took his ID from him, he pretended to hand it back to § 87(2)(b) several times, but would pull it back every time § 87(2)(b) would reach for it. PO Rana told § 87(2)(b) to "get the fuck out," but retained possession of § 87(2)(b)'s ID. § 87(2)(b) asked PO Rana if he was going to give back the ID or not, because if not he would pick it up from the precinct. PO Rana then handed § 87(2)(b) his ID and a summons.

PO Rana stated that he obtained § 87(2)(b)'s ID to run a warrant check and issue the summons, after which he gave § 87(2)(b) the summons and told him to have a nice day. PO Jang estimated that PO Rana was in possession of § 87(2)(b)'s ID for approximately 10-15 minutes because he was running the warrant check and issuing the summons. PO Jang stated that PO Rana never told § 87(2)(b) to leave while in possession of § 87(2)(b)'s ID. PO Mancusi and PO Surajbali both stated that they were unsure which officer had possession of § 87(2)(b)'s ID and did not recall any conversation in regard to § 87(2)(b)'s ID or getting it back. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation L** be closed as **unsubstantiated**.

Allegation M – Abuse of Authority: PO Aman Rana issued a summons to § 87(2)(b)

It is undisputed that PO Rana issued § 87(2)(b) a summons for violation of park rule 1-04, subsection K – urination and defecation in parks. PO Rana wrote in the narrative that § 87(2)(g)

§ 87(2)(b) urinated in a NYC Parks Department facility and said to PO Rana, “Rookie faggot I should’ve decked you and bolted, motherfucker.” (encl. E5-E7).

§ 87(2)(b) acknowledged that he was leaning on and facing a wall when PO Rana observed him. § 87(2)(b) stated that this was due to the fact that his stomach was upset and he believed he was going to vomit. Upon seeing the officers approaching him, § 87(2)(b) left the area he was standing in and moved to a location approximately 30 feet away. § 87(2)(b) stated that at no point did he urinate in public and that at several points throughout the incident, he asked the officers to walk with him to the location they had first observed him at to determine if there was urine there.

PO Rana stated that he first observed § 87(2)(b) from across the park [Johnson Park], but was unable to recall how far away he was from § 87(2)(b). Later, PO Rana stated that he was on the east sidewalk of 3rd Avenue when he observed § 87(2)(b) on the west sidewalk. PO Rana stated that he originally intended to stop § 87(2)(b) for entering the park because when he first observed him, § 87(2)(b) was walking towards the park, which closes after dark. PO Rana believed it was around dusk when he first observed § 87(2)(b) and stated that the weather that day was clear and warm. PO Rana saw § 87(2)(b) walk into the park and walk towards the wall of a building that borders the park area. PO Rana was shown Google Maps images (encl. CC3-CC4) to confirm the wall near which he observed § 87(2)(b). PO Rana could not recall how close to the wall § 87(2)(b) was standing, but stated he was close to it. Originally, PO Rana stated that he observed § 87(2)(b) facing a corner of a building with his side to PO Rana and that his body language indicated that he was urinating. PO Rana was unable to verbally articulate what this body language was. However, during his CCRB interview, he motioned toward the genital area as a method of explanation. PO Rana did not ever see § 87(2)(b)’s genitals or urine. Later, PO Rana stated that § 87(2)(b)’s hand was near his penis, although he could not recall if it was both his hands or just one by his genitals and never saw Mr. § 87(2)(b)’s genitals. PO Rana described § 87(2)(b) as standing upright. PO Rana did not recall what § 87(2)(b) was wearing or if § 87(2)(b) adjusted his clothing at any point. PO Rana did hear any sounds of any zipper being opened or closed or observe any wet spots, urine, or hear the sound of urination. PO Rana could not recall how long § 87(2)(b) was in the gated area for, but when § 87(2)(b) saw PO Rana and his partner crossing the street towards him, he exited the gated area and walked down the street, where PO Rana stopped him opposite of 2095 3rd Avenue. § 87(2)(b) denied urinating and offered no explanation for why he was against the wall and did not mention being sick. PO Rana did not recall if § 87(2)(b) ever requested to go back to the location PO Rana had accused him of urinating in, but stated that he never went back to the location because he “saw what [he] saw.” Later, PO Rana said that based on his observation, which solely consisted of § 87(2)(b)’s posture and hand position, he was certain of what he saw. PO Jang did not observe § 87(2)(b) urinating and was informed of this observation by PO Rana. He did not observe any urine or wet spots in the vicinity of § 87(2)(b) and did not recall if § 87(2)(b) requested to go back to the location he was accused of urinating in. Neither PO Mancusi or PO Surajbali were present when § 87(2)(b) was initially observed.

NYS Park Rule 1-04 (K) states, “No person shall urinate or defecate in any Park, or in or upon any park building, monument or structure, except in a facility which is specifically designed for such purpose.” (encl. AA5-AA7). New York Criminal Procedure Law dictates that an officer may arrest a person for any offense when he had reasonable cause to believe that such a person has committed such an offense in his presence and may issue and serve an appearance ticket upon the arrested person and release him from custody. N.Y.C.P.L. § 140.10 (1)(a), 140.20 (2)(a) (encl. AA9-AA12).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation M** be closed as **substantiated**.

Pod: 9

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date